

GALLANT IAS ACADEMY
PRELIMS CUM MAINS BATCH 2027
POLITY
MODULE 2.3
PARLIAMENT - ARTICLES 102-106

Article 102: Disqualification

Article 102 lays down the grounds on which a person is disqualified from being chosen as, and from being, a member of either House of Parliament.

Ground	Detail
Office of profit	Holding any office of profit under the Government of India or the Government of any State, other than an office Parliament has declared by law not to disqualify its holder. A Minister's office is specifically not treated as an office of profit.
Unsound mind	As declared by a competent authority
Undischarged insolvent	As declared by a competent court
Citizenship	Voluntarily acquiring the citizenship of a foreign country, or being under any acknowledgement of allegiance/adherence to a foreign state
Other laws	Disqualified under any law made by Parliament - most importantly, the Representation of the People Act, 1951, and the Anti-Defection Law (Tenth Schedule)

Representation of the People Act, 1951 - Disqualification Provisions

Provision	What It Covers
Section 8	Conviction for specified offences - promoting enmity between groups, bribery, undue influence or personation at an election, offences related to rape, cruelty towards women, offences under the Protection of Civil Rights Act 1955, exporting/importing prohibited goods, terrorism-related offences, the Dowry Prohibition Act, and others. Conviction with a sentence of 2 or more years for any offence also triggers disqualification, for the sentence period plus a further 6 years after release.
Lily Thomas v. UOI (2013)	Struck down the provision that had allowed a sitting MP/MLA to stay disqualification merely by filing an appeal within the limitation period - disqualification now takes effect immediately on conviction

Section 8A	Disqualification on the ground of corrupt practices, for a maximum of 6 years. Section 123 of the RPA defines corrupt practices. Process: a High Court records a finding of corrupt practice on an election petition; the matter then goes directly to the President, who decides the period of disqualification after obtaining the opinion of the Election Commission.
Section 9	Disqualification for dismissal from government service for corruption or disloyalty - disqualification for 5 years
Section 9A	Disqualification for involvement in government contracts
Section 10	Disqualification if a person is a manager or secretary of a company in which the government holds more than 25% of the share capital
Section 10A	Failure to lodge an account of election expenses - the Election Commission can disqualify for up to 3 years
Section 11	The Election Commission may remove any of the above disqualifications, except a disqualification under Section 8A (a power that has drawn criticism for potential misuse - as in the Sikkim CM Tamang context)

Mains Practice Question: On what grounds can a people's representative be disqualified under the Representation of the People Act, 1951? Also mention the remedies available to such a person against his disqualification. (15 marks) (2019, GS2)

Mains Practice Question: 'There is a need for simplification of procedure for disqualification of persons found guilty of corrupt practices under the Representation of the People Act.' Comment. (10 marks) (2020, GS2)

Article 103: Decision on Disqualification

Questions of disqualification under Article 102 are decided by the **President**, in consultation with the **Election Commission of India** - whose opinion is binding on the President. This is distinct from disqualification on grounds of defection under the Tenth Schedule, where the deciding authority is the **Speaker or Chairman**, not the President.

Office of Profit

The office-of-profit bar exists to preserve the **separation of powers**, avoid a **conflict of interest** between the legislature and the executive, curb political opportunism in appointments, and maintain an ethical Parliament.

What actually constitutes an office of profit has been shaped largely through **judicial activism**, with courts giving varied and sometimes conflicting judgments over the years. Parliament has also carved out statutory exemptions through the **Parliament (Prevention of Disqualification) Act, 1959**, based on the recommendations of the **Bhargava Committee (1954)**. Notable instances include the President's disqualification of 20 MLAs of the Delhi Legislative Assembly in 2018 for holding office as parliamentary secretaries, and the **Sonia Gandhi case (2006)**, where she resigned as an MP after facing an office-of-profit challenge over her chairmanship of the National Advisory Council.

Office of Profit: Issues and the Way Ahead

Issues	Way Ahead
The term 'office of profit' is not defined in the Constitution or the RPA	Define 'office of profit' clearly in law
Parliament and State legislatures can exempt offices by ordinary law - e.g. the Parliament (Prevention of Disqualification) Act, 1959	The 2nd ARC recommended that all offices with executive decision-making powers and financial control be treated as an office of profit, while purely advisory offices should not be, regardless of remuneration attached
Innovations like 'parliamentary secretary' posts have been used to bypass the constitutional bar, affecting separation of powers	The UK practice of designating whether a body constitutes an office of profit at the time of its creation could be adopted
Affects parliamentary accountability of ruling-party MPs; parliamentary attendance can fall short when members hold such offices	Greater clarity would strengthen an ethical Parliament

Anti-Defection Law (Tenth Schedule)

Historical Context

Large-scale defections in the 1970s and 1980s - with nearly 50% of MPs defecting at least once - gave rise to the phrase '**Aya Ram Gaya Ram**'. In response, the **52nd CAA, 1985** inserted the **Tenth Schedule** into the Constitution.

Provisions

The law covers **all MPs**, except the Chairman of the Rajya Sabha. Questions of defection are decided by the **presiding officer**, subject to judicial review (settled in **Kihoto Hollohan v. Zachillhu, 1992**).

Grounds for Disqualification	Exemptions
Voluntarily giving up membership of the party	Acting against the party stand with the party's prior permission
Voting against the party whip and not getting it condoned within 15 days	A merger where at least two-thirds of a party's members agree to merge with another party (91st CAA) - a one-third split option existed earlier but was removed by the 91st CAA
An independent member joining a political party	

A nominated member joining a political party more than 6 months after taking their seat	
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An example of the merger exemption in action: in April 2026, 7 of 10 AAP Rajya Sabha MPs merged with the BJP, a move the Rajya Sabha Chairman approved under this provision.

The law is meant to promote **stability**, curb the **power of money** in defections, and encourage responsible membership. Under the **91st CAA**, a member disqualified under the anti-defection law cannot hold a **remunerative political post** until re-elected. Complaints of defection can be filed by any voter, not just a fellow member of the House - as settled in **Speaker, Odisha Legislative Assembly v. Utkal Keshari Parida (2013)**.

Arguments Against the Law and the Way Ahead

Argument Against	Way Ahead
'Voluntarily giving up membership' is not clearly defined - Ravi S. Naik v. UOI (1994) held a formal resignation is not needed to establish this	The Halim Committee (1993) recommended clearly defining what constitutes voluntarily giving up membership
Resignation can be used as a loophole, as seen in Karnataka and elsewhere;	Bring pre-poll alliances within the scope of the anti-defection law
Confusion over how coalitions fit the definition of 'political party' - as seen in the Maharashtra episode	The Dinesh Goswami Committee recommended restricting whip-enforced voting to only the most important issues (confidence motions, money matters, and matters central to the party's manifesto)
The two-thirds merger exemption has no clear rationale and can be seen as violating a fiduciary relationship - as in Telangana and Goa; whether a merger should be assessed at the state or national level is also unclear	The Law Commission (1999) recommended removing the merger exemption altogether; clearer merger guidelines are needed regardless
The presiding officer deciding defection cases may be biased, with no fixed time period or manner prescribed for the decision - as seen in the Manipur episode, where delay was used as a tool	The Dinesh Goswami Committee recommended shifting the decision-making power to the Election Commission; in Keisham Meghachandra Singh v. Speaker, Manipur (2020), the Supreme Court directed that such decisions be made within 3 months

The only punishment is disqualification, which does not prevent wholesale defections; <u>Nabam Rebia v. Deputy Speaker, Arunachal Pradesh</u> held that a Speaker cannot adjudicate a disqualification petition while a motion for his own removal is pending	There is a constitutional tension between Article 105 (freedom of speech in the House) and the Tenth Schedule that needs to be resolved with clearer guidelines
Party politics is prioritised over individual conscience, paralysing intra-party democracy - in effect, a Bill is passed 'through' Parliament rather than 'by' Parliament; this strengthens governments and weakens oppositions, reversing the accountability paradigm since the executive need only convince party leaders to issue a whip	-

When political office becomes a tradable asset, institutional decay begins as citizens lose faith in the system. By closing loopholes, ensuring impartial adjudication, and promoting ethical conduct, the anti-defection law can better serve its purpose of upholding accountability, representation, and the integrity of democratic institutions.

Mains Practice Question: The anti-defection law is defeating the purpose it was meant to achieve. Critically analyse. (10 marks) (150 words)

Article 104: Penalty for Sitting and Voting Before Making Oath or Affirmation

Article 104 penalises a member who sits or votes before making the oath or affirmation required under **Article 99**, or while knowing they are not qualified, or are disqualified, for membership.

Article 105: Powers, Privileges of the Houses of Parliament, Members and Committees

Members of Parliament are protected from legal action for anything they say or how they vote during parliamentary proceedings. This protection extends to the **Attorney General** when participating in Parliament, but not to the President. Parliament is required to prescribe the powers and privileges of Parliament by law.

Until such a law is made, privileges remain **uncodified**. Before the **44th CAA, 1978**, Article 105(3) tied these undefined privileges to those enjoyed by the UK House of Commons as they stood at the commencement of the Constitution. The 44th CAA removed this reference to a foreign legislature, and instead froze privileges as they stood immediately before the 44th CAA itself came into force.

Correction applied: The original slide noted only that the 44th CAA freezes privileges as 'not codified', without mentioning what changed. Before the 44th CAA, Article 105(3) explicitly pegged undefined privileges to those of the UK House of Commons - a detail that is a common distractor in PYQs on this Article. The 44th CAA severed that link to a foreign legislature; this has been added above.

Sources and Categories of Privilege

Privileges derive from multiple sources: the **Constitution, laws, Rules of Procedure, conventions, and judicial pronouncements**.

Collective Privileges	Individual Privileges
Right to publish its own reports, debates and proceedings, and to prohibit others from doing so	Freedom from arrest in civil cases only - no arrest 40 days before and 40 days after a session; no such protection in criminal cases
Right to hold secret sittings	Absolute freedom of speech within the House - covering both what is said and how a member votes
Right to make its own rules for conducting business	Exemption from jury service during a session
Right to punish members as well as outsiders for breach of privilege	
No person can be arrested within the precincts of the House without the presiding officer's permission	

Why Privileges Are Needed, and the Issues With Them

Why Needed	Issues
Gives MPs the independence to express themselves freely, supporting deliberative democracy	Privilege is not clearly defined, which can affect citizens' own right to free speech - e.g. the 2003 incident where the Tamil Nadu Assembly Speaker acted against a journalist for using words like 'fumed' about the Chief Minister
Maintains the sanctity and dignity of the House	Can run against constitutionalism, and is functionally constrained by the anti-defection law
Helps keep the executive accountable	Privilege committees can be biased; codification is difficult in practice
	Risk of misuse - the Sita Soren v. UOI (2024) ruling held that bribery is not protected by parliamentary privilege, overturning the earlier position in the JMM bribery case; State of Kerala v. K. Ajith (2021) and concerns about partisan Speakers

Reform proposals include **codifying privileges**, as recommended by the **NCRWC** and the **2nd ARC** (Australia has codified its parliamentary privileges), and setting up an **independent tribunal** to adjudicate privilege matters.

Mains Practice Question: The 'Powers, Privileges and Immunities of Parliament and its

Members' as envisaged in Article 105 of the Constitution leave room for a large number of uncodified and unenumerated privileges to continue. Assess the reasons for the absence of legal codification of 'parliamentary privileges'. How can this problem be addressed?

Article 106: Salaries and Allowances of Members of Parliament

The salaries and allowances of MPs are determined by **Parliament, by law**.

Prelims Practice Questions (PYQs)

1. Consider the following statements:
 1. If any question arises as to whether a Member of the House of the People has become subject to disqualification under the 10th Schedule, the President's decision in accordance with the opinion of the Council of Union Ministers shall be final.
 2. There is no mention of the word 'political party' in the Constitution of India.
 Which of the statements given above is/are correct? (2025)
 - (a) I only
 - (b) II only
 - (c) Both I and II
 - (d) Neither I nor II
2. With reference to anti-defection law in India, consider the following statements:
 1. The law specifies that a nominated legislator cannot join any political party within six months of being appointed to the House.
 2. The law does not provide any time-frame within which the presiding officer has to decide a defection case.
 Which of the statements given above is/are correct? (2022)
 - (a) 1 only
 - (b) 2 only
 - (c) Both 1 and 2
 - (d) Neither 1 nor 2
3. Consider the following statements:
 1. The Parliament (Prevention of Disqualification) Act, 1959 exempts several posts from disqualification on the grounds of 'Office of Profit'.
 2. The above-mentioned Act was amended five times.
 3. The term 'Office of Profit' is well-defined in the Constitution of India.
 Which of the statements given above is/are correct? (UPSC 2019).
 - (a) 1 and 2 only
 - (b) 3 only
 - (c) 2 and 3 only
 - (d) 1, 2 and 3
4. Which one of the following Schedules of the Constitution of India contains provisions regarding anti-defection? (2014)
 - (a) Second Schedule
 - (b) Fifth Schedule
 - (c) Eighth Schedule
 - (d) Tenth Schedule